

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**COMPLAINANTS' MOTION FOR AN EXTENSION OF TIME TO RESPOND TO
MOTION TO INTERVENE**

Pursuant to Rules 69 and 71 of the Federal Maritime Commission's (the "Commission") Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their Counsel, Marcus A. Nussbaum, Esq. respectfully submit this Motion For An Extension Of Time To Respond To Motion To Intervene, seeking an extension of time up to and including August 15, 2016 to respond to said Motion.

On the date the motion was filed, the undersigned was traveling overseas in order to attend to a family matter, with limited access to email. This fact has already been acknowledged by counsel for the Respondents, who on July 14, 2016 provided the Secretary and the Presiding

Officer with a copy of the undersigned's "Out of Office Auto-reply", which explained that the undersigned's law office "...will be closed from July 13, 2016 through August 11, 2016...".

Complainants' instant motion constitutes a first request for an extension of time since the inception of these proceedings.

The Presiding Officer is respectfully requested to note that discovery in this matter has become protracted due to the countless motions filed by Respondents. Consequently, it is requested that apart from Complainants' instant request, that all other discovery deadlines remain as presently scheduled by the Presiding Officer as follows:

1. Respondents' Reply on their Motion for Judgment on the Pleadings - July 26, 2016;
2. The Parties' Response to the Presiding Officer's Order to Supplement the Record – July 26, 2016;
3. The Parties' Reply to each other's responses to the Order to Supplement the Record – August 2, 2016.

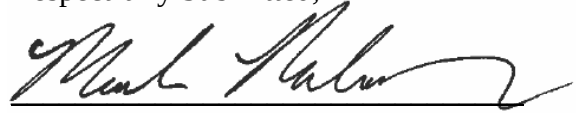
The undersigned attempted to 'meet and confer' with Respondents' counsel Mr. Jeffrey on this issue, who unreasonably refused to consent unless the undersigned agreed to a "stay" of all motions filed to date including the instant motion. Needless to say, such unreasonable proposal was and is unacceptable to Complainants.

It is therefore respectfully requested that the Presiding Officer now grant an extension of time up to and including August 15, 2016, for the *sole* purpose of extending Complainants' time within which to respond to said motion.

WHEREFORE, it is respectfully requested that Complainants motion be granted in its entirety.

Dated: July 18, 2016
Brooklyn, NY

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

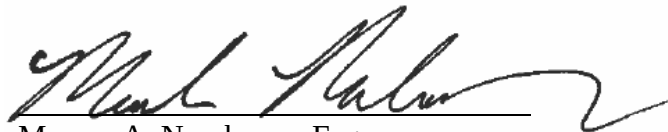
Marcus A. Nussbaum, Esq.
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marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' MOTION FOR AN EXTENSION OF TIME TO RESPOND TO MOTION TO INTERVENE** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and by email (ejeffrey@nixonpeabody.com).

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
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Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: July 18, 2016 in Brooklyn, New York.